

[doc. web n. 10043051]  
Provision of May 23, 2024  
Register of Provisions  
No. 304 of May 23, 2024

## THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by  
Prof. Pasquale Stanzione, President, Prof.  
Ginevra Cerrina Feroni, Vice President, Dr.  
Agostino Ghiglia and Attorney Guido Scorza, Members, and  
Counsel Fabio Mattei, Secretary General;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament  
and of the Council, of April 27, 2016 (hereinafter "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003 (Code on  
the Protection of Personal Data, hereinafter "Code") as amended by Legislative Decree No. 101 of  
August 10, 2018,  
containing "Provisions for the adaptation of national legislation to the provisions of Regulation  
(EU) 2016/679";

HAVING REGARD to the report from the Local Police of San  
Benedetto del Tronto, which refers to a  
control carried out on July 29, 2021, at the  
public areas in front of civic numbers XX of Viale  
XX and XX, which confirmed the presence of three  
cameras, fully operational, capable of  
recording the public road, located  
respectively on the north and south fronts of the property  
located in San Benedetto del Tronto, Via XX;

HAVING EXAMINED the documentation on file;

HAVING REGARD to the observations made by the Secretary  
General pursuant to Article 15 of the Guarantor's  
Regulation No. 1/2000;

REPORTING Prof. Ginevra Cerrina Feroni;

### PREMISED

1. The report received and the initiation of  
the procedure.

By note received on August 2, 2021, the Local Police of  
San Benedetto del Tronto transmitted to this  
Authority the report of the inspection carried out on  
July 29, 2021, by the aforementioned Police Body, at  
the public areas in front of civic numbers XX of  
Viale XX and XX concerning three cameras,  
which were found to be operational, located respectively on  
the north and south fronts of the property located in San Benedetto  
del Tronto, Via XX; the data processing  
from the aforementioned cameras is  
attributable to Mr. XX.

The report indicated the presence of 2 external cameras  
located, respectively, under the balcony  
facing north on the first floor of the property located in

Viale XX and on the north wall of the same, capable of recording - as confirmed by the statements made by the party during the inspection - the main entrance door of his property and part of the public road Via XX - and of a third camera located on the south side oriented towards the south façade of the property and towards the public area of XX.

The cameras located on the north front of the property were capable of recording part of the public road facing the entrance of the commercial establishment named "XX".

The Office, by note dated March 3, 2022 (prot. No. 13660), notified the initiation of the procedure, pursuant to Article 166, paragraph 5, of the Code in relation to the violation of Articles 5, paragraph 1, letter a) and 6 of the Regulation.

The data controller, informed of the possibility of submitting defensive writings or documents in relation to the sanctioning procedure against him, on April 12, 2022, sent a communication to the Guarantor in which he stated:

- that he had installed, "in the third decade of July 2021" some surveillance cameras for security purposes and due to the fact that the customers of the bar located in front of his residence (XX) were accustomed to disturbing the night peace;
- that he "had commissioned an acoustic assessment to prove that the anthropogenic noise generated by the bar in question (managed by Mr. XX) exceeds the normal tolerability during nighttime hours" (assessment carried out on the night between September 5 and 6, 2021, with a positive outcome);
- that "since December 7, 2021, the camera (located on Viale XX) has ceased to function as it is broken."

With a subsequent note dated July 10, 2022, Mr. XX sent the Guarantor an additional note to which he attached some complaints submitted to the Public Prosecutor's Office at the Court of Ascoli Piceno, in which he reported harassing behaviors by patrons of the bar "XX" and a report to the Municipal Police of San Benedetto del Tronto for noise pollution by the bar "XX."

## 2. The legal framework of the processing carried out

In general, it is noted that, based on Article 2, paragraph 2 of the Regulation, when the processing is carried out by a "natural person for the exercise of activities of an exclusively personal or domestic nature," the provisions of the Regulation do not apply.

In this regard, Recital No. 18 of the Regulation specifies that "activities of an exclusively personal or domestic nature" are those carried out without establishing a connection with a commercial or professional activity.

The use of surveillance systems by natural persons in areas of direct interest (such as those related to their home and its pertinences) is therefore generally considered excluded from the material scope of the provisions on data protection, as they fall within the processing carried out for the exercise of activities of an

exclusively personal and domestic nature.

This is provided that the scope of data communication does not exceed the family sphere of the data controller and that the images are not subject to communication to third parties or dissemination and that the processing does not extend beyond the

strictly relevant areas of the data controller, recording...

images in common areas (including condominium types such as staircases, hallways, parking lots), publicly accessible places (streets or squares), or areas belonging to third parties (gardens, terraces, doors, or windows belonging to third parties).

In such circumstances, therefore, the processing carried out must be considered unlawful as it lacks an appropriate legal basis.

Only in the presence of actual risk situations can the data controller, based on a legitimate interest, extend the recording of cameras to areas that fall outside their exclusive domain, provided that this is adequately justified and supported by suitable documentation (e.g., reports, threats, thefts).

In such cases, the data controller is required to comply with the provisions regarding personal data protection, as found in Guidelines No. 3/2019 on the processing of personal data through video devices, adopted by the European Data Protection Board, and in the General Provision on video surveillance of April 8, 2010 (available on the Authority's website [www.gpdp.it](http://www.gpdp.it), doc. web 1712680).

### 3. The outcome of the investigation and the sanctioning procedure.

Based on the findings made by the Local Police of San Benedetto del Tronto, it emerged that the video surveillance system installed by Mr. XX was active and functioning at the time of the inspection and that it was capable of recording additional areas beyond those of its exclusive domain, specifically the parts of the public road adjacent to the entrance of the commercial establishment named "XX."

Since the recordings of the cameras were directed towards the outside of the private sphere of the person processing the data, they constitute a processing of personal data that cannot be considered outside the scope of application of the Regulation pursuant to Article 2, paragraph 2 of the Regulation (processing carried out by a "natural person for the exercise of activities of an exclusively personal or domestic nature"), as clarified by the Court of Justice (Court of Justice of the European Union, Fourth Chamber, judgment of 11/12/2014, C-212/13).

It follows that it is possible to install video recording systems without having to comply with the obligations provided for by the rules on personal data protection, as long as the camera's field of view is limited to the areas of its own domain, potentially even through the activation of a function to obscure the excess parts, with the perspective, however, that a minimal involvement near the accesses may be considered permissible (regarding obscuring see Provision of the Guarantor No. 429 of September 28, 2023 [doc. web n. 9947775]).

In exceptional cases where there are actual risk situations, the data controller may, based on a legitimate interest, extend the recording of cameras to public or publicly accessible areas immediately adjacent to their domain, provided that the public space recorded is only that immediately facing the entrances and windows of their residence and that such extension is necessary and proportionate, in relation to the context, to ensure effective protection (see in this regard Guidelines No. 3/2019 of the European Data Protection Board on the processing of personal data through video devices, point 27).

In these cases, however, it is necessary that the extent and immediacy of the threat are adequately documented (for example, by reports of threats, thefts, or acts of vandalism). The recording of public or common spaces that do not have an immediate connection with the areas of domain or the recording of areas belonging to third parties is never permissible.

In cases where there are justified reasons for a limited extension of recordings to public or common areas, the data controller is required to comply with the provisions regarding personal data protection, as found in the aforementioned Guidelines No. 3/2019 and in the General Provision on video surveillance of April 8, 2010 (available on the Authority's website [www.gpdp.it](http://www.gpdp.it) [doc. web 1712680], see also FAQ No. 10 on video surveillance, published on the same site on December 5, 2020 [doc. web 9497843]).

If it is established that the cameras record areas beyond those of domain, in the absence of the aforementioned prerequisites or the obligations provided for by the provisions, the resulting processing

would be unlawful, leading to the application of corrective and sanctioning measures by the Authority (see for a concrete application case the Provision of the Guarantor of April 27, 2023 [doc. web n. 9896468]).

In this regard, during the procedure, although the party provided elements regarding a situation of discomfort caused by the behavior of people frequenting a venue located in front of their residence, these do not appear sufficient, in themselves, to legitimize a constant recording of public areas subject to the passage of people, beyond those immediately adjacent to the accesses of Mr. XX's residence.

4. Conclusions: declaration of unlawfulness of the processing. Corrective measures pursuant to Article 58, paragraph 2, of the Regulation.

In light of the evaluations that precede, considering all the elements acquired during the investigation, it is believed that the conduct carried out by Mr. XX is contrary to the principle of lawfulness set forth in Article 5, paragraph 1, letter a, of the Regulation, as well as lacking suitable legitimacy prerequisites pursuant to Article 6 of the same Regulation.

The Guarantor, pursuant to Article 58, paragraph 2, letter i)

**\*\*From the Regulation and Article 166 of the Code, the authority has the power to impose an administrative monetary sanction as provided by Article 83, paragraph 5, of the Regulation, through the adoption of an injunction order (Article 18, Law No. 689 of November 24, 1981), in relation to the processing of personal data carried out through the video surveillance system.\*\***

With reference to the elements listed in Article 83, paragraph 2, of the Regulation for the application of the administrative monetary sanction and its quantification, considering that the sanction must be "effective, proportionate, and dissuasive in each individual case" (Article 83, paragraph 1 of the Regulation), it is represented that, in this specific case, the following circumstances have been taken into account:

1. Regarding the nature, severity, and duration of the violation, the conduct of the data controller has been considered, particularly concerning the camera placed on XX (currently operational), which is still ongoing and involves an indefinite number of data subjects;
2. The circumstance that, although Mr. XX cooperated with the Authority by sending his defensive writings, he declared that a camera located on Viale XX had not been operational since December 7, 2021, without providing the Authority with documentation to support his statements, resulting in the inability to verify that appropriate measures were taken to mitigate the damage suffered by the data subjects.

In light of the aforementioned elements, evaluated in their entirety, it is deemed appropriate to determine the amount of the monetary sanction at €400.00 (four hundred) for the violation of Articles 5, paragraph 1, letter a) and 6 of the Regulation.

In this context, also considering the type of violation established, it is believed that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Authority's Regulation No. 1/2019, the publication of this provision on the Authority's website should proceed.

It is finally noted that the conditions referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers assigned to the Authority, are met.

**\*\*ALL OF THE ABOVE CONSIDERED, THE AUTHORITY declares, pursuant to Articles 57, paragraph 1, letter f) and 83 of the Regulation, the illegality of the processing carried out by Mr. XX through the use of the video surveillance system installed at his residence, located in San Benedetto del Tronto, Viale XX, as stated in the reasoning, for the violation of Articles 5, paragraph 1, letter a) and 6 of the Regulation;\*\***

**\*\*ORDERS\*\***

Mr. XX (C.F. XX) to pay the sum of €400.00 (four hundred) as an administrative monetary sanction for the violation indicated in the reasoning;

**\*\*ENJOINS\*\***

the same to conform, pursuant to Article 58, paragraph 2, letter d) of the Regulation, the processing of data carried out to the provisions of the Regulation, with reference to the positioning of the cameras with a view angle on XX in such a way as to limit the recording to areas of his own relevance and those immediately adjacent to his residence;

to pay the sum of €400.00 (four hundred), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of subsequent enforcement actions pursuant to Article 27 of Law No. 689/1981. It is represented that pursuant to Article 166, paragraph 8 of the Code, the offender retains the option to resolve the dispute by paying – always according to the methods indicated in the annex – an amount equal to half of the imposed sanction within the term referred to in Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011, provided for the submission of the appeal as indicated below.

**\*\*DISPOSES\*\***

pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Authority's Regulation No. 1/2019, the publication of this provision on the Authority's website and considers that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

It is also ordered that the initiatives undertaken to implement the provisions of this decision be communicated and that adequately documented feedback be provided pursuant to Article 157 of the Code, within 90 days from the date of notification of this provision; any failure to respond may result in the application of the administrative sanction provided for in Article 83, paragraph 5, letter e) of the Regulation.

Pursuant to Article 78 of the Regulation, Articles 152 of the Code, and Article 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be filed before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, May 23, 2024

**\*\*THE PRESIDENT\*\***

Stanzione

**\*\*THE RAPPORTEUR\*\***

Cerrina Feroni

**\*\*THE SECRETARY GENERAL\*\***

Mattei